

SYNTHETIC TRAINING RECORD — NOT FILED — ALL NAMES AND FACTS ARE
FICTIONAL

UNITED STATES DISTRICT COURT EASTERN DISTRICT OF VIRGINIA RICHMOND
DIVISION

ASTERGLEN FREIGHT SOFTWARE, INC., Plaintiff,

v.

Civil Action No. SYN-25-0117

COPPER KESTREL LOGISTICS, LLC, and MERIDIAN SILT HOLDINGS, LLC, Defendants.

DEFENDANTS' OPPOSITION TO RULE 54(b) MOTION

Defendants oppose immediate entry. Although Count I was dismissed with prejudice, Asterglen has not shown the exceptional circumstances needed to fragment this two-sided contract dispute.

Rule 54(b) requires both a final disposition of an individual claim and an express determination that there is no just reason for delay. *Kinsale Insurance Co. v. JDBC Holdings, Inc.*, 31 F.4th 870, 873–74 (4th Cir. 2022). The inquiry begins tilted against fragmentation and requires a case-specific assessment.

I. Resolved and unresolved matters overlap

Count I, Count II, and the counterclaim arise from the same Pilot License, expansion, July 8 discussion, audit, July 22 disablement, and alleged opportunity to cure. The same witnesses and documents bear on authorization, breach, causation, and damages.

The January 12 order reserved whether expansion was production use, whether Asterglen waived the signed-writing requirement, and whether damages were otherwise recoverable. Those questions remain relevant to Count II and the counterclaim.

II. Later proceedings could narrow or moot practical review

If Meridian Silt prevails because the expansion was authorized, or if Copper Kestrel prevails on its counterclaim because Asterglen wrongfully disabled service, the factual and remedial posture of Count I will materially change. Settlement or trial could eliminate the need for piecemeal review.

III. Repeat appellate review is likely

An immediate appeal would require review of Section 9.2, the July 22 email, and the summary-judgment record. A later appeal from the counterclaim could require review of the same provision, communication, and cure evidence. Different legal labels do not eliminate the duplicated record.

IV. The counterclaim presents a possible setoff

Copper Kestrel seeks \$120,000 arising from the same termination and disablement. If Asterglen eventually restores Count I, the counterclaim could offset part of the claimed judgment. That is the setoff concern identified in the Rule 54(b) factors.

V. No hardship supports immediate review

Asterglen offers no evidence of insolvency, irreparable economic injury, witness loss, or unusual delay. Ordinary litigation expense and uncertainty do not distinguish this action from other multi-claim contract cases. The parties remain active opponents below, which weighs against certification.

VI. Any order must be explicit and reasoned

If the Court nevertheless grants the motion, Defendants ask it to make the exact express determination required by Rule 54(b) and to state case-specific findings. A bare grant of the motion cannot substitute for the Court's own express determination. See *Kinsale*, 31 F.4th at 874–76.

Defendants make this request to preserve the distinction between a party's contention and an entered judicial finding. They do not consent to certification.

Conclusion

The Court should deny the motion. Alternatively, it should state its claim-finality conclusion, its express no-just-reason determination, and its reasoning on claim relationship, mootness, repeat review, setoff, and equities.

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Respectfully submitted: January 30, 2026.

COPPER KESTREL LOGISTICS, LLC and MERIDIAN SILT HOLDINGS, LLC

By fictional counsel:

/s/ Avery Example

Avery Example (fictional) synthetic-response (at) example.invalid

Certificate of service

The exercise states that this opposition was electronically served on all synthetic counsel on January 30, 2026. No real filing or service occurred.

Exercise issue preservation

The opposition expressly raises each *Braswell/Kinsale* consideration and warns that granting the motion is not the express determination required by the rule. The later notice, briefs, and opinion cite this page range to show preservation. Nothing here purports to control the Court's order.